

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505619	LINDMAN VS THE ESTATE OF DAVID A. CONTIGIANI	MOTION TO DEPOSIT FUNDS WITH COURT AND ORDER OF DISCHARGE AND DISMISSAL

Tentative Ruling:

The Motion of Chase is granted. Chase is to deposit the sum of \$438,561.81 less attorney fees and costs of \$5125.55. for 10 hours of attorney time and the costs as presented, Upon making the deposit, Chase will be discharged of liability to any party to this action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203353	BLOOMAGE BEVERLY HILLS INVESTMENT INC. VS GUO	MOTION FOR NEW TRIAL

Tentative Ruling:

The Motion for new trail is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405170	RODRIGUEZ VS CITY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

This lawsuit is about the assault and battery of Plaintiff by an unidentified assailant. Although the assailant is unknown, Plaintiff has alleged that the person was an employee of Defendant Ability. The only cause of action alleged against Ability is the Fourth Cause of Action for Negligent Hiring, Supervision and Retention of an Unfit Employee and/or Vicarious Liability. (Separate Statement of Undisputed Material Facts ("UMF") No. 1; Exhibit A, Complaint, ¶¶ 39-42.) Thus, Plaintiff's only claim against Ability is premised on the assailant being an Ability employee.

On September 13, 2024, Plaintiff filed a Complaint for (1) assault; (2) battery; (3) intentional infliction of emotional distress; (4) negligent hiring, supervision & retention of an unfit employee; (5). Negligence and (6) premises liability.

Plaintiff has identified his assailant as a black male, approximately six feet tall, in a grey hoodie. (UMF No. 2, 3.) The police report corroborates Plaintiff's description, as it also states that the suspect was a Black male, 6'1" and 140 pounds. (UMF Nos. 4, 5.)